

25CHCV01812 25CHCV01812

County: los-angeles

Division: Civil Law and Motion

Department: F49

Hearing date: 2026-07-09

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF49%2C07%2F09%2F2026

Source SHA-256: f9eed50cdd0bd254a8440119d1f2ea39eb01d83c616885cb39d0aa18f7705f5e

Case Number: 25CHCV01812 Hearing Date: July 9, 2026 Dept: F49

Dept. F49

Date: 7/9/26

Case Name: A.R., et al. vs. Charisma Academy I Inc. dba
Granada Hills Montessori, et al.

Case No. 25CHCV01812

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 9, 2026

MOTION TO SEAL

DECLARATION

Los Angeles Superior

Court Case No. 25CHCV01812

Motion filed: 2/6/26

MOVING PARTY: Plaintiffs A.R., et al.

RESPONDING PARTY: None

NOTICE: OK

RELIEF REQUESTED: An order from this Court granting Plaintiffs leave to redact the full names of their guardians ad litem in declarations filed in support of Plaintiffs' motion for trial preference.

TENTATIVE RULING: The Motion is GRANTED.

I.

BACKGROUND

This action arises from alleged personal injuries sustained by a group of minor Plaintiffs while attending Defendants' pre-schools.

On May 23, 2025, Plaintiffs A.R., by and through Guardian Ad Litem ("GAL") A.U.; A.E., by and through GAL J.E.; B.L., by and through GAL B.L.; D.V., by and through GAL A.V.; H.N. and M.N., by and through GAL A.K.; L.G., by and through GAL L.G.; M.O., by and through GAL M.J.O.; N.M., by and through GAL V.M.; S.S., by and through GAL R.S.; and Z.W., by and through GAL J.W. (each, a "Plaintiff," and collectively, "Plaintiffs") initiated this action.

On January 12, 2026, Plaintiffs filed the operative First Amended Complaint ("FAC") against Defendants Charisma Academy I Inc. dba Granada Hills Montessori Preschool ("GHMP"); Charisma Academy Inc. ("Charisma Corp."); Charisma Academy II Inc. ("Charisma II"); Charisma Academy III Inc. ("Charisma III"); Charisma Academy IV Inc. ("Charisma IV"); Charisma Academy V Inc. ("Charisma V"); Charisma Academy VI Inc. ("Charisma VI") (collectively, "Charisma Defendants"); Noresha Jayasundara ("Jayasundara"); Noesh Hordagoda ("Noesh"); Gladys Villalobos ("Villalobos"); Roshini Hordagoda ("Roshini"), and Does 1 through 100. The FAC alleges the following six causes of action: (1) assault, (2) battery, (3) intentional infliction of emotional distress, (4) negligence and negligence per se for breach of mandatory duty—failure to report, (5) negligent hiring, supervision and retention of employee, and (6) premises liability.

On

February 11, 2026, Charisma Defendants, Noesh, Villalobos, and Roshini filed

their joint Answer to the FAC. On February 13, 2026, Jayasundara filed an Answer to the FAC.

On February 6, 2026, Plaintiffs filed the instant motion to seal (the “Motion”).

No opposition papers have been filed.

II. ANALYSIS

A. Legal Standard

Courts records are presumed to be open unless confidentiality is required by law. (Cal. Rules of Court, rule 2.1550, subd. (c).) “A party requesting that a record be filed under seal must file a motion or an application for an order sealing the record.” (California Rules of Court, rule 2.551, subd. (b)(1).) The motion must be served on all parties that have appeared in the case and be accompanied by a memorandum and declaration that contain sufficient facts to justify sealing. (Id., rule 2.551, subds. (b)(1)-(b)(2).)

“The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) [t]here exists an overriding interest that overcomes the right of public access to the record; (2) [t]he overriding interest supports sealing the record; (3) [a] substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) [t]he proposed sealing is narrowly tailored; and (5) [n]o less restrictive means exist to achieve the overriding interest.” (California Rules of Court, rule 2.550, subd. (d).)

B. Motion to Seal

Plaintiffs request that they be permitted to redact their full names and the names of their GALs from the declarations filed in support of Plaintiff’s motion for trial preference to be heard concurrently with this Motion. (Mot., at p. 2.) Plaintiffs have lodged the declarations conditionally under seal with the Court pursuant to California Rules of Court, rule 2.551, subd. (d).) As discussed below,

the Court finds that Plaintiffs have established the facts necessary for relief.

(1) Overriding Interest

“The overriding interest can involve the content of the information at issue, the relationship of the parties, or the nature of the controversy.” (Universal City Studios, Inc. v. Super. Court (2003) 110 Cal.App.4th 1273, 1281.) Examples of overriding interests include, inter alia: (1) protecting minor victims of sexual abuse from further trauma and embarrassment, (2) protecting the privacy interests of prospective jurors during voir dire, (3) protecting witnesses from embarrassment or intimidation that would cause trauma, and (4) protecting trade secret and privileged information. (Ibid.)

Here, Plaintiffs contend that they have an overriding interest in preserving their anonymity in the instant litigation to protect them from the trauma of public attention.

The right to privacy is one of the inalienable rights enumerated in the California Constitution. (Cal. Const., Art. I, § 1.) Courts have found that this right encompasses the right to conceal personal information, including, in appropriate circumstances, markers of a person’s identity. (In re M.T. (2024) 106 Cal.App.5th 322, 337-340 [concluding that transgender person’s gender identity is intimate personal information entitled to privacy protection].)

The Court notes that Plaintiffs are all minors between the ages of six and eight years old who allege physical and psychological abuse committed by Defendants. Disclosure of their identities as victims of such abuse may cause additional trauma and embarrassment beyond what they already allege they have suffered. The Court finds that there is an overriding interest in protecting Plaintiffs against further trauma.

Plaintiffs are appearing in the action through their GALs, and disclosure of the names of their GALs would necessarily reveal the identities of Plaintiffs. Plaintiffs’ interest in protecting their identities thus supports redaction of both their

own and their GALs' full names from the declarations at issue.

(2) Substantial Probability of Prejudice

Plaintiffs'

attorney attests that Plaintiffs and their families (including their GALs) live, attend school, and work in and around the community where the events giving rise to this action occurred. (Meng Decl., ¶ 4.) Plaintiffs contend that because of the significant attention drawn by the events in the community, Plaintiffs' interest in avoiding further trauma will be prejudiced by revealing their identities. (Mot., at p. 4.) The Court agrees and finds that there is a substantial probability that revealing the identities of Plaintiffs as victims of physical and psychological abuse would result in unwarranted attention that may cause further psychological harm.

(3) Narrow Tailoring

Plaintiffs

request only the redaction of Plaintiffs' and their GALs' full names from the declaration submitted in support of Plaintiffs' motion for trial preference. The declarations will otherwise remain public. Plaintiffs' counsel declares that Defendants are already aware of Plaintiffs' and their GALs' identities. (Meng Decl., ¶ 5.) The Court accordingly finds that the request is narrowly tailored only to achieve the interest of preserving Plaintiffs' anonymity, without prejudice to Defendants' interest in conducting discovery and preparing a defense or to the public's interest in access to the record.

Based on the foregoing, the Court GRANTS the Motion.

CONCLUSION

The Court GRANTS Plaintiffs' Motion to Seal.

Moving party to give notice.